

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

2. JACINTA LASHAE BADELITA V. BOGDANEL BADELITA

22FL0797

On January 22, 2026, Respondent filed a Request for Order (RFO) seeking orders to travel to Romania. It was served the same day; however Respondent did not serve the requisite blank FL-320 or the Notice of Tentative Ruling as required.

This matter is dropped from calendar due to lack of proper service.

TENTATIVE RULING #2: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. JENNIFER DANIELS V. JOSE CARRERO

PFL20170812

On March 10, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and an order for Respondent to attend anger management classes. The RFO was filed ex parte and the parties were referred to an emergency set Child Custody Recommending Counseling (CCRC) appointment. A review hearing was set for the present date. All required documents were served on March 10th.

Respondent filed a Responsive Declaration to the ex parte using the requisite FL-320. However, on March 16, 2026, he filed an Amended Responsive Declaration and a 2nd Amended Responsive Declaration, neither of which utilize the required FL-320 form therefore, the court has not read or considered these documents.

The parties attended Child Custody Recommending Counseling (CCRC) on March 17, 2026 and were able to reach some agreements. A report with the agreements and recommendations was prepared and mailed to the parties on March 25, 2026.

On April 2, 2026, Respondent filed a response to the CCRC report. Petitioner also filed a Response to CCRC Report and Response to Respondent's Declaration(s), Objections and Request to Strike.

Respondent filed a Reply Declaration on April 2nd. He filed another Reply Declaration on April 3rd. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all reply papers are to be filed at least five court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 2nd the last day for filing a Reply Declaration therefore the April 3rd Reply is late filed and it has not been read or considered by the court.

Petitioner is requesting sole legal and sole physical custody of the minor until Respondent has completed anger management. She also requests an order for Respondent to participate in anger management.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.